

EPC AGREEMENT — VERSION 6.5 (August 2026)

All agreed amendments through v6.5 are integrated directly into the numbered clauses below at their correct place in the Agreement — there is no separate annex or side schedule. Clauses are colour-coded by source (see the key after Section 1): red = included as the Client requested; purple = included with our changes; orange = included with our counter-proposal; teal = raised by Dino Constantinou; blue = raised by Anastasios (lawyer); navy = base v6 drafting.

Colour key: ■ included as requested ■ included — our changes ■ included — our counter ■ from Dino ■ from Anastasios
■ base v6 drafting

ENGINEERING, PROCUREMENT & CONSTRUCTION AGREEMENT

Battery Energy Storage System (BESS)

Document Reference: LCY-EPC-GAL-B1-2026

Version: 6.5

Date: August 2026

VERSION HISTORY

v1.0 — Oct 2025: Initial draft

v2.0 — Jan 2026: Linyang RFI confirmed terms

v3.0 — 22 Feb 2026: Installation scope, delay LD framework, bankability

v4.0 — 17 Mar 2026: Single counterparty warranty, title at PAC, unified warranty, performance guarantees

v5.0 — 6 May 2026: Two-component price split, FAC removed (3-month DLP), tiered liability cap (10/50/uncapped), client lawyer review comments addressed

v5.1 — May 2026: Indicative Price + Confirmed Price mechanism (raw material / FX adjustment), LD Value split (Comp A delivery / Comp B commissioning), upstream FM flow-through, 12-month Connection Terms longstop, 30-day advance payment trigger

v6.0 — June 2026: Amendment Schedule (integrated into the body at v6.3) — dual APG to PAC, DWU as CP, manufacturing-defect carve-out, delivery at Connection Terms, price re-anchoring, VAT clarity, title/APG alignment, EMS entity update

v6.1 — July 2026: Client redline (Dino/Anastasios) — accepted: grid-forming included in Contract Price, EMS-affiliate warranty carve-out, 4.4B interface responsibility, LTSA as simultaneous-execution CP, 19.12 deliverables list, Schedule A spec-freeze, insurance before first payment; negotiated: integrated-suite most-favourable-to-Client interpretation (11.5), Independent Engineer PAC-payment gate (7.1B), additional liability carve-outs latent + safety/grid-code (13.3A), FAC reinstated (9.2A), PAC shortfall remedy capped 10% Component A (9.1B), binding Delivery Schedule with OEM FM preserved (8.4.8), set-off with ascertained/agreed qualifier (7.4A), Lighthief International performance undertaking by confirmation letter (16.3B)

v6.2 — July 2026: Timotheos / technical review items incorporated — EPC: excluded-items scope certainty (4.6), Client-breach causation & burden (5A.5), witnessed testing & independent expert (10.6A), Force Majeure limitations (12.6), Client withdrawal right (1A.7A), lender step-in & direct agreement (16.3A), DWU required-features & APG issuing-bank procurement covenants (10.8A/10.9B), cyber-security

framework (18A); LTSA: restoration/resolution SLA (8.2A), monitoring/alerting (5.2A/8.1A), major-incident procedure (8.6A), 24/7 safety response (8.7A), warranty-preservation file (6.1A/6.3A), data ownership (5.8A), chronic underperformance (9.8), transition assistance (13.6), expert determination (20.5) and related technical clauses

v6.3 — July 2026: Stelios Constantinou (Galascope) track-change items — VAT reverse-charge (7A), Component B milestone payment schedule M1-M5 (7B), PAC acceptance matrix (9.1A), FAC independent-expert sign-off (9.2A-EXP), PAC capacity criterion raised to 98.5% SOH, \$11 park-performance concession (11.1-PERF), SOH full annual curve reference (10.6-SOH), APG-consistency clause (10.9-APG), late-payment interest ECB+3%, joint client inspection at pre-shipment, 5% PG extended to 6 months post-PAC, fencing/security note, 90-120 day delivery-to-PAC installation timeframe, operation clauses LTSA+EMS cross-references, companion-document acceptance bundle at the Connection-Terms trigger — APG, LTSA, Technical Agreement sign-off, DWU and EMS Subscription Addendum all gate the advance payment (1A.3 / 1A.5); PAC Long-Stop defined at fifteen (15) months from receipt of Connection Terms, replacing the subjective withdrawal test in 1A.7 with an objective threshold shared with 1A.7A(a)

v6.3 pre-signing corrections (30 Jul 2026, internal legal review): corrected the OEM Performance Guarantee back-to-back period claim in the retention/PG clause to match the OEM Performance Guarantee's actual current 3-month validity (extension requested separately from the OEM per Anastasios's 12-month ask); re-anchored the Contractor's Professional Indemnity insurance in-force date to the Order Date under Section 1A.4 (Section 14.4/14.5(e)), consistent with the CAR policy's own attachment point (this narrows only the informal "from the Effective Date" language the Contractor had added beyond Dino's actual \$14.4 ask, which remains unchanged: insurance evidence before first payment)

v6.3 optional extended BESS warranty pricing (30 Jul 2026): new Section 10.6-EXT discloses the official Linyang Cyprus pricing for an optional, Client-elected extension of the BESS Performance and Product Warranty for Years 6–10 (EUR 913.92/MWh/Year) and Years 11–15 (EUR 1,157.62/MWh/Year), delivered under the LTSA (Schedule 2) if elected. Scope is BESS only — the PCS/MVS extended-warranty option (EUR 747.76 and EUR 926.10/MWh/Year respectively) is disclosed for completeness but is not offered, per the Client's instruction; LTSA Schedule 2's PCS + MVS Product Warranty rows are marked "not offered" accordingly. Neither option is included in the Contract Price or selected by default.

v6.3 final sweep (30 Jul 2026): fixed EPC \$7.2 to match the Article 11B domestic reverse-charge VAT treatment (Contractor does not add VAT; Client self-accounts); fixed EPC \$10.5 to remove the "Tier A or above" gating on the Contractor-monitoring-failure carve-out, so warranty protection under (i)–(iv) applies for as long as any confirmed LTSA is in force, matching Stelios's insertion and \$10.5A; corrected the stale LTSA §11.4-mirror "COMPANION DOCUMENTS" section (was still tagged "v6.0" and "all three documents simultaneously") to reference v6.3 and the LTSA's own CP status per §1A.5A; added LTSA §5.5 Client (or nominated representatives) training on the Monitoring Platform, a Timotheos ask that had not yet been drafted or logged in the response matrix; clarified in the response matrix that the client's SOH-linked automatic LTSA-cancellation ask (§10.4) was a deliberate counter, not an oversight. Ran a full extraction of every tracked-change insertion in Stelios's, Timotheos's (EPC + LTSA) and Anastasios's source redlines (156 items) and confirmed each is now reflected in the contract text or is a disclosed, tracked counter/open item.

v6.3 SOH curve correction (30 Jul 2026): direct read of Linyang's "Power Atlantic 5MWh Degradation Curve" source PDF confirmed both Galascope 1 (5 MW/20.06 MWh) and Galascope 2 (2.5 MW/10.03 MWh) are ~4-hour systems, i.e. the 0.25P operating condition (not 0.5P, a prior working assumption). Corrected EPC §10.6(a)/§10.6-SOH and LTSA §10.2/Schedule 5 from a blended 0.5P/0.25P curve (Y5 86.26%, Y10 79.58%, Y15 72.45%) to the verified 0.25P, 1-cycle/day curve throughout (Y1 94.62%, Y2

91.77%, Y3 89.91%, Y4 88.00%, Y5 86.78%, Y6 84.97%, Y7 83.83%, Y8 82.25%, Y9 81.06%, Y10 79.58% unchanged, Y15 73.61%). This matches Stelios's original request exactly and is an OEM-data correction, not a new client concession — it raises, not lowers, the Client-facing guarantee. The OEM Direct Warranty Undertaking (04) is our own draft, so §2.1/§2.2 SOH figures and §2.4 cycle life (7,000→8,000) were corrected in the same pass, closing what would otherwise have been a ~1.8–3.2 point back-to-back gap at Year 5/15 between the DWU and the EPC/LTSA. Linyang is asked (DWU-and-PG-Change-Instructions memo) to confirm agreement with the updated DWU figures before signing, or flag if they prefer a more conservative floor; not a blocker to signing the EPC.

v6.5 — August 2026: Dr. Arkadius Sybaris (Lighthief International) push-back on Stelios's SCC-call redline, plus the remaining Stelios SCC-call items — new §1A.8 condition-subsequent structure for Companion Documents (Deficiency Notice / 30-Business-Day cure, per-document independent termination — Sybaris counter to the client's global void-ab-initio draft); §5A.5 burden-of-proof broadened to all §5A.3 Client obligations; §6.1C deleted entirely; §7.4(b) retention released in 10 days (was 30), 12-month corporate PG; §7.4A set-off capped at 15% of the milestone and excludes the PAC payment, improper set-off = Payment Default; §11.5 replaced the most-favourable-to-Client interpretation rule with a fixed document order of precedence (EPC first); §13.3A latent-defect carve-out time-limited to 2 years from PAC and safety/grid-code carve-out narrowed to Contractor-attributable, pre-PAC non-conformity, with a new “latent defect” definition; §13.5 now expressly lists the itemised manufacturing-defect categories (Timotheos's original ask, previously only logged as ‘included’ in the response matrix but never drafted); §14.4 body text moved back under its own heading (was mis-ordered after §14.5) plus a new note that OEM (Linyang) provides marine cargo insurance to CIF Limassol; §16.3B and new Schedule D (Lighthief International parent-company Performance Undertaking Letter) narrowed to an insolvency-only trigger and capped to the same §13 limits as the Contractor (Sybaris counter to the client's broader due-performance draft); §8.1 Incoterm changed to DDP to the Client's Site (OEM→Contractor leg remains CIF Limassol); §6.1/§7.2/§7C consolidated into one VAT clause keeping the Article 11B reverse-charge position while reserving the Contractor's right to invoice VAT if the Cyprus Tax Department later rules against reverse-charge; §7.1 Component A gained a 5% retention tranche released at FAC (Delivery tranche reduced 15%→10%, cash-neutral); §9.1A PAC acceptance matrix gained an explicit SAT-pass item; new “Order Date” definition (= Effective Date, per the Parties' decision to sign all Companion Documents together, no delay) and §1A.4 updated accordingly. LTSA, DWU and EMS Addendum have been mirrored for this round (§4.4B, the EMS carve-out, SOH conditionality and the new §1A.8 structure); v6.5 pre-signing corrections (13 Aug 2026) also closed the §10.5/§10.5A EMS-responsibility wording, added the Schedule D cross-reference at §7.1A/§7.4(b), completed the global “Effective Date”→“Order Date” sweep, corrected the §14.4 colour-coding, and updated the Redline Response Matrix (§11.5 precedence order and §7.4A set-off cap) to match.

Addendum — 11 Aug 2026: New §4.6B confirms lightning protection (BESS containers, MV skid and Site — air-termination, down conductors, earth electrodes, SPD and earthing per the §7.1 M3 milestone) is fully included in the Contract Price, with no client-paid “external LPS” carve-out. Resolves an inconsistency between this Agreement and the client-facing scope-of-works slide, which previously excluded external LPS.

Addendum — 11 Aug 2026 (2): Removed brand-specific "DEHN" and "HVI" references from §4.6B and the §7.1 M3 milestone. The lightning-protection/surge-protection (LPS/SPD) supplier has not yet been finalized; wording is now supplier-neutral pending final vendor selection.

Addendum — 13 Aug 2026: Corrected the EMS contracting entity's legal name from "R&D Innovations Sp. z o.o." to its actual registered name, "Disperon Sp. z o.o." NIP, KRS and registered-office fields are unaffected (KRS and address remain pending confirmation).

Addendum — 14 Aug 2026: Reinforced single-signing-date intent across the package — fixed LTSA's internal contradiction on same-date signing, added Order Date cross-references to the DWU, EMS Addendum and Schedule D, and clarified in the Cover Note that the bank/OEM-issued instruments (APGs, Performance Guarantee) are the disclosed exception to same-date signing.

Addendum — 18 Aug 2026: Renamed internal "Schedule B — Delay LD Worked Examples" to "Appendix — Delay LD Worked Examples" to eliminate ambiguity with the package's actual Schedule B (Certificates & Compliance, Cover Note item Sch. B).

Addendum — 18 Aug 2026 (2): Removed erroneous "(Schedule C)" label from the OEM Performance Guarantee reference in §7.1A — Schedule C refers exclusively to the OEM Direct Warranty Undertaking (doc 04); the OEM Performance Guarantee (doc 06) has no schedule letter.

1. PARTIES

This Engineering, Procurement and Construction Agreement ("Agreement") is made as of [●] 2026 (the "Order Date", also referred to as the "Effective Date")

BETWEEN:

Lighthief Cyprus Ltd, a company incorporated under the laws of the Republic of Cyprus, with registered office at Agiou Andreou 241, AG TRIAS COURT, Flat/Office 31, 3036 Limassol, Cyprus, and operational address at 28 October Avenue 249, Lophitis Business Center 1, Office 201, 3035 Limassol, Cyprus, Company No. HE 477423, TIN 60187188Q ("Contractor");

and

Galascope Ltd, a company incorporated under the laws of the Republic of Cyprus, with registered office at Karaiskaki 6, City House, 3032 Limassol, Cyprus, Registration No. HE 303759 ("Client").

Contractor and Client are referred to individually as a "Party" and collectively as the "Parties."

1A. CONDITIONS PRECEDENT

1A.1 This Agreement is conditional upon the Client obtaining grid connection terms from EAC/DSO for the Site ("Connection Terms") within twelve (12) months of the Order Date ("Long-Stop Date").

1A.2 If Connection Terms are not obtained by the Long-Stop Date, either Party may terminate this Agreement by written notice without liability. The Contractor shall refund the advance payment within thirty (30) days, less reasonable and documented costs incurred.

1A.3 The advance payment under Section 7.1(a) shall become due within thirty (30) days of the later of: (i) the Order Date; and (ii) receipt of Connection Terms; and in any event only once the Client has accepted or signed off the companion-document bundle (the OEM Direct Warranty Undertaking, the Advance Payment Guarantee (APG No. 1), the OEM 5% performance guarantee, the Confirmed Price Certificate, the LTSA, the Technical Agreement(s) for Galascope 1 and Galascope 2, and the EMS Subscription Addendum) under Section 1A.5.

1A.4 Nature of EPC Execution. Execution of this Agreement on the Order Date (also referred to as the "Effective Date") constitutes placement of the order with the OEM, consistent with the Parties' agreement to execute the Companion Documents referred to in Section 1A.8 together with this Agreement, without delay. For the avoidance of doubt, placement of the order under this Section creates the Contractor's obligation to the OEM but does not itself trigger any payment obligation of the Client: the advance payment under Section 7.1(a) falls due only once the conditions in Sections 1A.1 to 1A.3 and 1A.5 are satisfied.

1A.5 Companion Documents — Condition Precedent to the Advance. The advance shall not become due until the Contractor has presented to the Client, and the Client has accepted or signed off (such acceptance not to be unreasonably withheld or delayed beyond ten (10) Business Days of presentation), each of the following, substantially in the form attached: (a) the OEM Direct Warranty Undertaking, signed and sealed by the OEM, covering the Project (Galascope 1 and Galascope 2); (b) the Advance Payment Guarantee (APG No. 1) issued by the OEM's bank naming the Client as beneficiary, and consistent with the agreed APG wording per Section 10.9-APG; (c) the OEM 5% performance guarantee; (d) the Confirmed Price Certificate per Section 6.1; (e) the LTSA (LCY-LTSA-GAL-2026), executed and delivered per Section 1A.5A; (f) the Technical Agreement(s) for Galascope 1

and Galascope 2, signed off by both Parties confirming the frozen technical specification (Schedule A); and (g) the EMS Subscription Addendum, executed by the Client and the EMS provider (Disperon Sp. z o.o., trading as DISPERON).

1A.5A LTSA — condition precedent to the advance payment. The Long-Term Service Agreement (LTSA, Ref. LCY-LTSA-GAL-2026) between the same Parties must be executed and in force before the advance payment under Section 7.1(a) falls due. The advance payment shall not become due unless the LTSA is already executed and delivered, together with the other companion documents in Sections 1A.5(a)–(d). The EPC may be executed independently of the LTSA; the Parties intend that the LTSA will be executed before Connection Terms are received, but in any event it must be in place no later than the date the advance payment falls due under Section 1A.3. For the avoidance of doubt, the LTSA is not a document to be agreed at a later unspecified time — it must accompany the advance payment milestone.

1A.5B Pre-Shipment Payment — Condition Precedent. The pre-shipment payment (Section 7.1(b)) shall not become due until: (a) the equipment has passed the Factory Acceptance Test (Section 8.3B) witnessed by or on behalf of the Client; and (b) the Contractor has presented the Pre-Shipment Advance Payment Guarantee (APG No. 2) issued by the OEM's bank naming the Client as beneficiary (Section 10.9(c)). The Client never funds an equipment prepayment tranche without a guarantee in place for that equipment prepayment.

1A.6 Bilateral Walk-Away. If any document in Section 1A.5 is not presented in the agreed form by the Long-Stop Date in Section 1A.1, either Party may elect not to proceed by written notice without liability, and any advance received shall be refunded within thirty (30) days less reasonable and documented costs. The companion-document drafts attached are provided for review and are not executed by signature of this Agreement.

1A.7 Client withdrawal on the delivery timeline. If the Target PAC Date in the Delivery Schedule confirmed at Connection Terms falls later than fifteen (15) months after the Client's receipt of Connection Terms (the “PAC Long-Stop”), the Client may withdraw from this Agreement by written notice within ten (10) Business Days of receiving the Delivery Schedule, without liability to either Party, and any advance received shall be refunded within thirty (30) days. This reflects that neither Party can predict the OEM's market or production-capacity movements at the time of order, while giving the Client certainty that the Contractor bears the risk of any Delivery Schedule beyond the PAC Long-Stop. The Client has no right of withdrawal under this Section where the confirmed Target PAC Date is on or before the PAC Long-Stop.

1A.7A Client withdrawal right. In addition to Section 1A.2, the Client may withdraw without liability (save for the refund mechanics in Section 1A.2) if: (a) the confirmed Delivery Schedule shows a Target PAC Date beyond the PAC Long-Stop defined in Section 1A.7; (b) the Confirmed Price Certificate is disputed by the Client in good faith and not resolved; (c) the APG validity does not cover the revised programme; or (d) the OEM quotation materially changes the equipment configuration or warranties from those on which this Agreement is based.

1A.8 Condition subsequent — agreement and execution of Companion Documents.

(a) Notwithstanding signature of this Agreement, the Parties acknowledge that this Agreement is executed before the following documents (together the “Companion Documents”) have been agreed and executed: (i) the Long-Term Service Agreement (Ref. LCY-LTSA-GAL-2026); (ii) the OEM Direct Warranty Undertaking for Galascope 1 and Galascope 2; (iii) Advance Payment Guarantees No. 1 and No. 2; (iv) the OEM Performance Guarantee; (v) the EMS Subscription Addendum; (vi) the Technical Agreements for Galascope 1 and Galascope 2; and (vii) the Lighthief International Ltd performance undertaking under Section 16.3B (Schedule D).

(b) This Agreement is conditional upon each Companion Document being: (i) agreed in form and substance satisfactory to the Client, acting reasonably; and (ii) executed, dated and, where applicable, sealed by all parties to it, in each case within thirty (30) days after the Order Date (the “Documents Long-Stop Date”).

(c) If, in respect of any particular Companion Document, that Companion Document has not been so agreed and executed by the Documents Long-Stop Date, the Party wishing to invoke this Section 1A.8 in respect of that Companion Document shall give the other Party written notice identifying the Companion Document in question (a “Deficiency Notice”). If the relevant Companion Document has still not been agreed and executed within thirty (30) Business Days following a Deficiency Notice (the “Cure Period”), either Party may terminate this Agreement by written notice, without liability to the other, save that: (i) any amounts paid by the Client shall be refunded within thirty (30) days, less reasonable and documented costs incurred by the Contractor prior to termination; and (ii) Sections 15 (Governing Law), 16.6 (Notices) and any confidentiality obligations shall survive. For the avoidance of doubt, the Cure Period and this right to terminate apply separately and independently in respect of each Companion Document listed in Section 1A.8(a).

(d) Neither Party is obliged to agree to any term of a Companion Document proposed by the other. No course of dealing, part performance of this Agreement, or payment made under it shall, of itself, be construed as either Party's acceptance that a Companion Document is agreed in form and substance satisfactory to it for the purposes of this Section 1A.8.

(e) The Parties may extend the Documents Long-Stop Date only by written agreement signed by both Parties.

Schedule A — Specification Freeze. The Technical Specification in Schedule A (and the companion Technical Agreements) shall be frozen and all placeholders, ‘to be confirmed’ items and open comments shall be closed before the order-placement advance becomes due under Section 7.1(a). The Contractor shall not place the order or invoke the advance-payment trigger against an open specification. The Technical Specification and Technical Agreements shall in all respects comply with the EAC and TSO grid-connection requirements applicable to the Project.

2. BACKGROUND

2.1 The Client owns and operates one or more renewable energy facilities and wishes to procure a battery energy storage system.

2.2 The Contractor has the capability to design, integrate, install, commission, and deliver battery energy storage projects on a turnkey EPC basis.

2.3 The Parties wish to set out the terms under which the Contractor shall deliver the BESS to the Client.

3. DEFINITIONS AND INTERPRETATION

3.1 Defined Terms

"Agreement" means this EPC Agreement, including all schedules, appendices, and amendments.

"BESS" means the battery energy storage system supplied under this Agreement, comprising the Linyang Power Atlantic LFP liquid-cooled battery container system, including battery packs, BMS, thermal management, fire suppression, and related components as described in Schedule A.

"Business Day" means a day other than a Saturday, Sunday, or public holiday in the Republic of Cyprus.

"Component A — Equipment Supply Price" means the portion of the Contract Price attributable to supply of BESS equipment CIF Limassol, as set out in Section 6.2.

"Component B — EPC Services Price" means the portion of the Contract Price attributable to EPC services, as set out in Section 6.3.

"Connection Terms" means the grid connection terms issued by EAC/DSO for the Site.

"Contract Price" has the meaning given in Section 6.1.

"Defects Liability Period" means the period of three (3) months commencing from the date of PAC, during which the Contractor shall remedy all defects notified by the Client.

"Delay LDs" means the liquidated damages payable by the Contractor for delay per Section 8.4.

"Effective Date" means the Order Date; see the definition of "Order Date" in this Section 3.1 and Section 1A.4.

"EMS" means Energy Management System. EMS integration is provided by Disperon Sp. z o.o. (trading as DISPERON, under Lighthief International Ltd) under a separate EMS Integration Agreement, guaranteed by the Contractor per Section 4.4.

"Force Majeure" has the meaning given in Section 12.1.

"LTSA" means a Long-Term Service Agreement entered into separately between the Parties.

"OEM" means Original Equipment Manufacturer (Linyang Energy).

"OEM Direct Warranty Undertaking" means the direct warranty confirmation letter issued by the OEM to the Client (Schedule C).

"Order Date" means the date of execution of this Agreement by both Parties (also referred to as the "Effective Date"), being the date on which the order is placed with the OEM per Section 1A.4.

"PAC" means Provisional Acceptance Certificate per Section 9.1.

"Products" means BESS, PCS, battery containers, control equipment, and related components.

"Retention" means the five percent (5%) retention amounts withheld on Component A and Component B under Sections 7.1 and 7.4, and released as provided therein.

"Site" means the installation location specified in Schedule A.

"Target PAC Date" means the date by which PAC is to be achieved per Section 8.4.

"Warranty Period" means five (5) years from the Warranty Start Date.

"Warranty Start Date" means: (a) the date of PAC; or (b) if PAC is delayed beyond six (6) months from equipment delivery to Site, the date six (6) months after delivery — but only where such delay is not

caused by the Contractor. Where PAC is delayed by causes attributable to the Contractor, the Warranty Start Date shall be the actual date of PAC.

3.2 Interpretation

- (a) Headings are for convenience only.
- (b) "Including" means without limitation.
- (c) References to laws include amendments.
- (d) Official language is English.

4. SCOPE OF WORK

4.1 Turnkey EPC Solution: The Contractor shall provide a complete turnkey EPC solution for the design, procurement, delivery, installation, commissioning, and handover of the BESS. The Contractor is the Client's sole counterparty for all works under this Agreement.

4.2 Contractor Scope

The Contractor shall be responsible for, and warrants the performance of:

- (a) Project management and coordination;
- (b) Detailed engineering and system integration design;
- (c) Procurement of BESS equipment from the OEM (Component A);
- (d) International logistics, import duties, customs clearance, and port-to-site transport (Component B);
- (e) Civil works, foundations, fencing, and site preparation (Component B);
- (f) AC/DC cabling, grounding, and auxiliary electrical systems (Component B);
- (g) Equipment installation, assembly, and commissioning by OEM-trained personnel under the Contractor's coordination and responsibility (Component B);
- (h) SCADA integration and grid compliance coordination (Component B);
- (i) Authority liaison, EAC submissions, and regulatory compliance (Component B);
- (j) Project documentation, training, and handover (Component B).

4.3 Single-Point Responsibility

- (a) The Contractor is responsible to the Client for the entire BESS system including OEM equipment and installation workmanship. The Client's sole recourse for any defect, delay, or performance issue is against the Contractor.
- (b) Subcontracting of installation or commissioning to OEM personnel does not relieve the Contractor of its obligations.
- (c) The Contractor warrants the performance of OEM equipment as if it were the Contractor's own work.

4.4 EMS Integration

- (a) EMS integration and SCADA commissioning are provided by Disperon Sp. z o.o. (trading as DISPERON, under Lighthief International Ltd), an affiliate of the Contractor, under a separate EMS Integration Agreement.

(b) The Contractor hereby guarantees the performance of Disperon Sp. z o.o. (trading as DISPERON, under Lighthief International Ltd)'s obligations under the EMS Integration Agreement. If Disperon Sp. z o.o. (trading as DISPERON, under Lighthief International Ltd) fails to perform, the Contractor shall fulfil those obligations directly or procure equivalent performance at the Contractor's cost.

(c) The Contractor warrants that the BESS is interface-compatible with the EMS at commissioning and that BMS-to-EMS communication protocols function correctly.

(d) Advanced EMS features, analytics, optimisation algorithms, market participation logic, or software licences shall be contracted separately.

(e) The Contractor is not responsible for EMS optimisation outcomes or revenue generation beyond interface compatibility.

4.4A EMS Provider (DISPERON). EMS integration, SCADA commissioning and the DISPERON software subscription are provided by Disperon Sp. z o.o. (NIP 9492265995; trading as DISPERON), a company under Lighthief International Ltd, under a separate EMS Integration Agreement and EMS Subscription Addendum. The Contractor guarantees that provider's performance of its obligations under those documents.

4.4B End-to-end interface responsibility. The Contractor remains responsible for end-to-end BMS, PCS, SCADA and EMS interface compatibility, communications, command execution and data integrity at PAC and during the Defects Liability Period. Failure of an affiliate, software provider or subcontractor to deliver these functions shall not excuse the Contractor's responsibility to the Client.

4.5 Any works not expressly listed are excluded unless agreed in writing. The EPC works (Component B) scope and the corresponding milestone payment schedule are set out in Section 7B and the Delivery Schedule confirmed at Connection Terms.

4.6 Excluded items — scope certainty. Items are excluded from the Contractor's scope only if expressly identified in Schedule A with a fixed technical boundary, price impact and responsible party. Any genuine ambiguity in scope shall be construed reasonably in favour of turnkey delivery.

4.6A Variation items — available at separately priced extra. The following items are excluded from the Contract Price and are available as separately priced variations upon written Change Order agreed in advance: (a) Crusher-run / crane-access ground preparation. Where the crane contractor's bearing-capacity requirements cannot be met by the existing site ground conditions, a compacted aggregate (crusher-run) base for crane outrigger pads and access routes will be required. This item is charged at cost plus fifteen percent (15%) on the basis of a site survey by the crane contractor and a written quotation agreed before works commence. (b) PCC switchgear bay extension / MV modification. Where connection of the BESS to the Client's existing PV transformer requires the installation of a new MV switchgear bay and/or reconfiguration of existing busbar in-feeds (including merging or re-routing of existing cable feeders to free a bay for the BESS incomer), this work will be separately priced per quotation. Indicative range: EUR 20,000–35,000 subject to site survey of existing switchgear by the Contractor's ETEK engineer and confirmation of panel compatibility, busbar rating and DSO approval requirements.

4.6B Lightning protection — scope confirmation. For the avoidance of doubt, lightning protection for the BESS containers, the MV skid(s) and the Site — including the air-termination system, down conductors, earth electrodes, surge protection devices (SPD) and associated earthing referenced in

the Section 7.1 milestone M3 — is included within the Contract Price and forms part of the Contractor's scope under Section 4.2(f). No separate charge or client-paid exclusion applies to any part of the lightning protection system, whether described as internal, external, or site-level.

5A. CLIENT OBLIGATIONS

5A.1 Pre-Commencement

The Client shall:

- (a) Provide complete and accurate site information;
- (b) Obtain planning permissions, building permits, and landowner consents;
- (c) Ensure clear site access for delivery and installation;
- (d) Provide secure storage for equipment (existing site fencing and alarm system confirmed as satisfactory for this purpose);
- (e) Obligation to provide electrical connection point and grid connection approval.

5A.1A Planning. The Client shall use reasonable endeavours to obtain planning permissions and landowner consents within sixty (60) days of the Order Date. Where delay by a planning or competent authority beyond the Client's reasonable control causes delay to the Target PAC Date, the Target PAC Date extends day-for-day. The Contractor shall not be entitled to additional cost reimbursement beyond reasonable and documented standby costs directly caused by such planning delay. The Client shall notify the Contractor promptly of material planning delay.

5A.2 During Works

The Client shall:

- (a) Provide site access during agreed working hours;
- (b) Designate a single point of contact;
- (c) Respond to queries within five (5) Business Days;
- (d) Provide timely approvals;
- (e) Not materially interfere with works.

5A.3 Post-Commissioning

The Client shall:

- (a) Operate BESS per OEM guidelines — for as long as the LTSA and EMS Subscription Addendum are in force, BESS operation and monitoring are managed under those agreements;
- (b) Maintain monitoring systems — monitoring is provided under the LTSA and EMS Subscription Addendum for as long as those agreements are in force;
- (c) Maintain site security and environmental conditions;
- (d) Maintain insurance;
- (e) Make all payments when due, linked to the agreed milestone completion certificates in Section 7B;
- (f) Permit Contractor access for warranty/maintenance.

5A.4 Consequences of Client Breach

- (a) Delay: If Contractor's works are delayed more than five (5) Business Days by Client's material failure, Target PAC Date extends day-for-day and Client reimburses reasonable documented costs.
- (b) Payment Default: If the Client fails to make any payment when due:
 - (i) Interest at EU Directive 2011/7/EU rate (ECB + 3% pa, simple interest);
 - (ii) Contractor may suspend works on seven (7) days' notice;
 - (iii) If overdue more than thirty (30) days, Contractor may terminate. Upon termination, the Contractor shall retain from payments received an amount equal to the value of works completed and materials delivered to Site, as agreed between the Parties within fourteen (14) days (or as determined by an independent quantity surveyor within thirty (30) days). Any excess payments received over such amount shall be refunded to the Client within thirty (30) days of determination.
- (c) Warranty: Client breach of Sections 10.4 or 10.5 may limit warranty to the extent the breach caused or contributed to the defect.
- (d) No Contractor Liability for delays or losses arising from Client's material failure to fulfil obligations.

5A.5 Client-breach causation and mitigation. No extension of time, cost reimbursement, warranty limitation or liability exclusion arising from a Client act or omission shall apply unless the Contractor demonstrates that the Client breach directly and materially caused the relevant delay, defect or loss and that the Contractor took reasonable mitigation measures. Conversely, in respect of any obligation of the Client under Section 5A.3 (and not only operational non-compliance such as low state-of-charge, denial of site access or loss of connectivity), the Client bears the burden of showing that it complied with the relevant obligation, to the same standard of directness, materiality and mitigation as set out above.

6. CONTRACT PRICE

6.1 Contract Price — Indicative and Confirmed

- (a) Indicative Contract Price: The Contract Price set out in Sections 6.2 and 6.3 is an Indicative Price based on the January 2026 quotation basis (locked per the signed LOI Clause 4.4), exclusive of VAT (Section 11B rules apply — see Section 7.2). The Indicative Price is binding on the Contractor for the period between the Order Date and the Confirmed Price Certificate Date (as defined below).
- (b) Confirmed Price Trigger: Within fourteen (14) days following the Client's receipt of Connection Terms (per Section 1A), the Contractor shall issue a Confirmed Price Certificate, fixing the final Contract Price to be applied to all subsequent payment milestones.
- (c) Adjustment Methodology: The Confirmed Price shall equal the Indicative Price, save where:
 - (i) the Linyang battery cell raw material reference index (reference: as recorded in the Indicative Price Basis Certificate at EPC signing (per LOI Clause 4.4)) has moved by more than ten percent (10%); or
 - (ii) the EUR/CNY exchange rate (reference: as recorded in the Indicative Price Basis Certificate at EPC signing (per LOI Clause 4.4)) has moved by more than eight percent (8%); or
 - (iii) the equipment configuration in Schedule A is modified at the Client's request.
- (d) Adjustment Cap: Any upward adjustment to the Indicative Price shall not exceed five percent (5%) of the Indicative Contract Price. Where the calculated adjustment exceeds 5%, either Party may terminate this Agreement without penalty by written notice within fourteen (14) days of the Confirmed Price

Certificate. Upon such termination, the Contractor shall refund any advance payments received within thirty (30) days, less reasonable and documented costs incurred prior to termination.

(e) Pass-Through Limitation: The Contractor shall not pass through any cost increases that result from the Contractor's own delay or fault.

(f) All milestone percentages in Section 7.1 are calculated on the Confirmed Contract Price (or, prior to issue of the Confirmed Price Certificate, on the Indicative Contract Price).

6.1A Price basis — consistent with the signed Letter of Intent (LOI Clause 4.4). Consistent with the signed LOI (Clause 4.4): Schedule A pricing is locked with the OEM on the January 2026 quotation basis, not spot index. The Indicative Price (Schedule A, or as updated in writing before signing) shall be the Confirmed Price for equipment-cost purposes, without upward raw-material or FX adjustment for index movement occurring before the EPC Order Date. The two-way adjustment under Section 6.1(c)-(d) applies after signing only, to verified movement from the indices stated in the Indicative Price Basis Certificate at EPC signing (Section 6.1B). The OEM has confirmed it continues to hold this price at the current level. References in the body and Schedule A to the January 2026 quotation or reference values are read consistently with this paragraph and LOI Clause 4.4.

6.1B Price Basis Certificates. The Contractor shall issue: (i) an Indicative Price Basis Certificate at signing, stating the Indicative Contract Price, the reference indices (Mysteel lithium carbonate and EUR/CNY as at the Order Date) and effective MWh per park; and (ii) a Delivery Price Basis Certificate upon delivery, stating whether the Confirmed Price equals the Indicative Price or the adjusted Confirmed Price under (c)-(d), with full index values and calculation shown. The Client may notify a dispute within fourteen (14) days of each Certificate; absent dispute the Certificate is deemed accepted for payment milestones following that date. Schedule A effective MWh: Galascope 1 — 20.06 MWh; Galascope 2 — 10.03 MWh.

6.2 Indicative Component A — Equipment Supply Price

EUR 2,823,169.43 ("Equipment Supply Price"), being the CIF Limassol value of BESS equipment supplied under this Agreement, comprising:

- (a) Battery containers and modules;
- (b) Power Conversion System (PCS);
- (c) Medium Voltage Skid and switchgear;
- (d) Main step-up transformer;
- (e) Battery Management System (BMS) and thermal management;
- (f) OEM-supplied cables, connectors, and ancillaries.

The Advance Payment Guarantee (APG) under Section 10.9 is secured against the Component A Equipment Supply Price only.

6.3 Indicative Component B — EPC Services Price

EUR 639,679.97 ("EPC Services Price"), being the cost of EPC services under this Agreement, comprising:

- (a) International logistics, import duties, customs clearance, and port-to-site transport;
- (b) Civil works, foundations, fencing, and site preparation;
- (c) AC/DC cabling, grounding, and auxiliary electrical systems;

- (d) Installation coordination and commissioning support;
- (e) SCADA integration and grid compliance;
- (f) Authority liaison, EAC submissions, and project management;
- (g) Documentation and handover.

No APG is required against the Component B EPC Services Price, which is earned progressively against services performed.

6.4 The Contract Price is based on current technical, regulatory, customs, and tax conditions. Material changes in scope, regulations, or law occurring after the Order Date entitle the Parties to agree a variation by written change order.

7. PAYMENT TERMS

7.1 Payment schedule — decoupled streams. The Contract Price (EUR 3,462,849.40, ex VAT) is structured in two independent payment streams with separate milestone triggers:

COMPONENT A — Equipment Supply Price (EUR 2,823,169.43, CIF Limassol):

A1. Equipment Advance (25%, EUR 705,792.36): due within seven (7) days of the payment trigger (\$1A.3); secured by APG No. 1; Contractor simultaneously pays the OEM advance.

A2. Pre-Shipment (50%, EUR 1,411,584.72): due on joint Contractor/Client written confirmation of FAT and issuance of APG No. 2, before shipment.

A3. Delivery (10%, EUR 282,316.94): due within seven (7) days of equipment delivery to Site, completion of joint inspection and quantity/serial-number verification.

A4. PAC (10%, EUR 282,316.94): due within seven (7) days of PAC issuance.

Retention (5%, EUR 141,158.47): released upon issuance of FAC at end of DLP (\$9.2A), subject to Section 7.4.

COMPONENT B — EPC Services Price (EUR 639,679.97):

M1a. Mobilisation + Engineering (20%, EUR 127,935.99): due at the payment trigger — professional services commence on this date: protection engineering, DSO/EAC application preparation, procurement management, ETEK design and project programme.

M1b. Civil/Platforms complete (20%, EUR 127,935.99): due on inspection and written approval of concrete platforms by the Client or its representative.

M2. Delivery + Placement (15%, EUR 95,951.99): due on completion of joint equipment inspection and placement of containers and MV skid on platforms.

M3. Cabling, Earthing and LPS complete (15%, EUR 95,951.99): due on completion of all MV/LV cabling, earthing grid and LPS/SPD, with test records submitted.

M4. EMS/SCADA + Cold Commissioning (15%, EUR 95,951.99): due on EMS/SCADA installation and cold-commissioning report.

M5. PAC (10%, EUR 63,967.99): due within seven (7) days of PAC issuance.

Retention (5%, EUR 31,984.00): released upon issuance of FAC at end of DLP (\$9.2A).

APG No. 1 secures A1 (EUR 705,792.36); APG No. 2 secures A2 (EUR 1,411,584.72). Component B payments are secured by the Contractor's performance obligations and the performance guarantee.

The first combined payment due at trigger = A1 + M1a = EUR 833,728.35. Payments are due within seven (7) Business Days of the relevant trigger. Cross-reference key: elsewhere in this Agreement, “Section 7.1(a)” means the advance payment (A1 above); “Section 7.1(b)” means the pre-shipment payment (A2); and “Section 7.1(c)” means the PAC payment (A4 and M5 together, i.e. the Component A and Component B amounts both due on PAC).

7.1A Interim performance guarantee. 5% Retention released at the end of the Defects Liability Period (three (3) months after PAC), subject to Section 7.4. In addition, the Contractor shall maintain a five percent (5%) performance guarantee valid for twelve (12) months after PAC in the form of a corporate performance guarantee issued by Lighthief Cyprus Ltd directly to the Client, confirming the Contractor's obligations to remedy defects and meet performance guarantees during that period (the Defects Liability Period plus nine (9) additional months). The Lighthief Cyprus Ltd corporate performance guarantee is backed back-to-back by the OEM (Linyang) Performance Guarantee for the initial three (3)-month Defects Liability Period, which is the OEM Performance Guarantee's validity period as currently drafted. For the additional nine (9) months of the Lighthief Cyprus Ltd guarantee, Lighthief Cyprus Ltd bears the obligation directly pending the extension requested from the OEM to match the full twelve (12)-month period; any such extension, once agreed, shall be reflected in an updated OEM Performance Guarantee without need to amend this Agreement. The Lighthief Cyprus Ltd guarantee does not limit the Client's rights under the OEM guarantee or under this Agreement. This performance guarantee is supported by the Lighthief International Ltd parent-company performance undertaking described in Section 16.3B and Schedule D.

7.1B Independent Engineer sign-off — PAC payment. The PAC payment under Section 7.1(c) shall not become due until the relevant PAC test certificate and PAC report (Section 9.1) have been accepted in writing by the Client or its appointed Independent Engineer, such acceptance not to be unreasonably withheld or delayed beyond ten (10) Business Days of the Client's receipt of a complying PAC certificate. This condition applies to the PAC payment only and does not affect the advance or pre-shipment payments under Sections 7.1(a)-(b).

7B Component B — EPC Works Milestone Payment Schedule (cross-reference). For the detailed achievement specifications and verification criteria applicable to each Component B milestone (M1a through Retention), see Section 7.1 above. Payments are due within seven (7) Business Days of the Client's written confirmation of milestone completion. Each milestone is linked to the Delivery Schedule confirmed at Connection Terms; exact dates are set at that stage.

Payments shall be made by bank transfer as follows:

7.2 VAT treatment. The Contract Price and all milestone amounts are stated exclusive of VAT. The Parties' present position is that the EPC services and equipment supplied under this Agreement are subject to Cyprus VAT on a domestic reverse-charge basis under Article 11B of the Value Added Tax Law (L. 95(I)/2000), and on that basis the Contractor shall not add or collect VAT on its invoices; the Client is responsible for self-accounting the VAT directly with the Cyprus Tax Department. No formal ruling on this treatment has yet been obtained from the Cyprus Tax Department in respect of this Agreement. If the Cyprus Tax Department at any time determines, whether by ruling, audit or otherwise, that the reverse-charge mechanism under Article 11B does not apply to any part of the Works or Equipment, the Contractor reserves the right to invoice, and the Client shall pay, VAT at the applicable rate on the amounts affected, in addition to amounts already invoiced or paid. Import

duty on the BESS equipment is included within the Contract Price. Import VAT, where applicable at the point of import, shall be dealt with by whichever Party acts as importer of record for Cypriot customs purposes, as agreed in writing between the Parties before the equipment is dispatched; neither Party shall be required to pre-fund import VAT on the other's behalf.

7.3 Late payments: Contractor may suspend on seven (7) days' notice. Interest per Section 5A.4(b)(i).

7.4 Retention

(a) The Client shall retain five percent (5%) of the Contract Price ("Retention") as security for defect rectification during the Defects Liability Period.

(b) Retention shall be released within ten (10) days of the end of the Defects Liability Period (three (3) months after PAC). The Contractor shall maintain a five percent (5%) performance guarantee valid for twelve (12) months after PAC in the form of a corporate performance guarantee issued by Lighthief Cyprus Ltd directly to the Client and agreed with the Client. This performance guarantee is supported by the Lighthief International Ltd parent-company performance undertaking described in Section 16.3B and Schedule D.

(c) Where punch-list items remain outstanding at the end of the Defects Liability Period, the Client may deduct from the Retention only the reasonable and documented cost of completing or procuring completion of those outstanding items. All other amounts shall be released.

(d) The Client shall not withhold, set off, or deduct from the Retention any amounts other than those directly attributable to punch-list items the Contractor has failed to rectify after written notice.

7.4A Set-off rights. The Client may set off against any unpaid milestone payment (excluding, for the avoidance of doubt, any PAC payment under Section 7.1(c), which shall not be subject to set-off under this Section) any amount that is: (i) agreed in writing by the Parties as due from the Contractor; or (ii) determined as due by a binding adjudicator's or expert's decision under Section 15.3. Set-off shall not apply to amounts that are disputed in good faith and not yet ascertained. The amount set off under this Section shall not exceed fifteen percent (15%) of the milestone payment against which it is set off. The Client shall give the Contractor seven (7) Business Days' prior written notice before exercising any set-off right, identifying the amount and basis of the set-off. Any set-off exercised by the Client otherwise than in accordance with this Section 7.4A (including without the required notice, without satisfying condition (i) or (ii), or in excess of the applicable cap) shall be treated as a failure to pay by the Client under Section 5A.4(b) (Payment Default), with the consequences set out therein.

7.5 TITLE AND RISK TRANSFER

(a) Risk passes to Client upon delivery to Site and unloading.

(b) Title (ownership) passes to the Client on the earlier of: (i) issuance of PAC and receipt of the PAC payment under Section 7.1(c); or (ii) twelve (12) months after delivery of the equipment to Site (the latest expiry of the Advance Payment Guarantees), so that title passes no later than the end of APG cover. Where title passes under (ii) before PAC, the Contractor retains a security interest in the Equipment for any unpaid balance until the PAC payment is made. The Retention does not defer title.

(c) Defects Liability: The Contractor undertakes to rectify all defects notified during the Defects Liability Period at its own cost. This obligation is the consideration for the Retention.

(d) Lender Security: Upon title transfer, the Client may grant security interests, charges, or pledges over the Equipment to lenders without the Contractor's consent.

(e) Early Title for Lenders: If the Client's project finance lender requires title to pass at an earlier stage (such as at equipment delivery or FAT), the Parties shall negotiate an alternative security or title transfer arrangement in good faith, provided it does not materially increase the Contractor's financial exposure.

8. DELIVERY AND INSTALLATION

8.1 Equipment supply DDP (Delivered Duty Paid) to the Client's Site in Cyprus (Incoterms® 2020), with the Contractor bearing transport, customs clearance and import duty through to Site, consistent with Section 7.5(a) (risk transfer on delivery and unloading at Site) and Section 14.5 (insurance coverage structure). For the avoidance of doubt, the OEM's (Linyang's) supply of equipment to the Contractor remains on a CIF Limassol basis under the OEM's separate supply contract; the OEM shall provide the Contractor with its certificate of marine cargo insurance for that leg, which the Contractor shall forward to the Client per Section 14.4.

8.2 Installation commences upon site readiness and delivery.

8.3 Typical installation period: 4–6 weeks.

8.3A Delivery & Shipping Schedule and Target PAC. Manufacturing, shipping and delivery lead time is NOT fixed at signing and no time commitment is given at signing. Production lead time is indicative only and may change from any manufacturing estimate previously discussed (including any three (3) month manufacturing figure), depending on the OEM's production capacity at the time of order. Upon receipt of Connection Terms (the order trigger under Section 1A), the Contractor shall issue a binding Delivery Schedule stating the confirmed manufacturing lead time, the shipping timeline and the Target PAC Date, together with the Confirmed Price Certificate under Section 6.1B; the Confirmed Price may differ from the Indicative Price only within the two-way adjustment and the five percent (5%) upward cap under Section 6.1(c)-(d). All time-based obligations and all Delay Liquidated Damages under Section 8.4 are calculated from that confirmed Delivery Schedule, and not from any duration or calendar date stated at or before signing.

8.3B Pre-Shipment Inspection / Factory Acceptance Test (FAT). Before any equipment is despatched and before the pre-shipment milestone (Section 7.1(b)) is paid, the Client and/or its appointed third-party inspector may inspect and witness factory acceptance testing at the OEM's facility on ten (10) Business Days' notice. Where the FAT reveals defects or non-conformity, the OEM/Contractor shall remedy them at no additional cost before shipment, and the Client may re-inspect. Pre-shipment payment is conditional on a passed FAT. The FAT is the primary protection against a material proportion of equipment being defective, as it prevents payment for and shipment of defective equipment.

8.4 Delay Liquidated Damages

8.4.1 Definitions

(a) "Target PAC Date" — agreed PAC date per Schedule A.

(b) "Critical Path Equipment" — PCS, MV switchgear/skid, main step-up transformer. Delay = Full Park Delay.

- (c) "Non-Critical Path Equipment" — individual battery containers where PCS/MV can commission remaining units. Delay = Partial Delay.
- (d) "Full Park Delay" — no portion of Park can commission.
- (e) "Partial Delay" — reduced capacity commissioning possible.
- (f) "Affected Capacity" — delayed MWh as % of total MWh.
- (g) "LD Value" — Calculated separately by delay type: (i) Equipment Delivery Delay (delivery of equipment to Site delayed): Confirmed Component A Equipment Supply Price for Full Park; or Confirmed Component A Equipment Supply Price × Affected Capacity % for Partial Delay. (ii) EPC Commissioning Delay (PAC not achieved after equipment delivered to Site for reasons within the Contractor's reasonable control): Confirmed Component B EPC Services Price for Full Park; or Confirmed Component B EPC Services Price × Affected Capacity % for Partial Delay. The combined Delay LDs across both categories shall not exceed the cap in Section 8.4.4.

8.4.2 Obligation

Contractor shall achieve PAC by the Target PAC Date. The target timeframe from equipment delivery to Site to PAC is ninety (90) calendar days (worst case one hundred and twenty (120) calendar days). Exact dates are defined in the Delivery Schedule issued at Connection Terms.

8.4.3 Calculation

(a) Delay LDs on LD Value:

- (i) Days 1–30: 0.1% per calendar day;
- (ii) Days 31–60: 0.15% per calendar day;
- (iii) Day 61+: 0.2% per calendar day.

(b) Full Park: LDs on entire Contract Price. Partial: LDs on proportional value only. Escalation: recalculates if Partial becomes Full. See Appendix — Delay LD Worked Examples below.

8.4.4 Cap

Maximum aggregate Delay LDs per Park shall not exceed ten percent (10%) of the Contract Price. This cap and the termination right in Section 8.4.5 are the primary remedies for delay and together provide adequate protection.

8.4.5 Termination for Prolonged Delay

If PAC is not achieved within one hundred and eighty (180) days of the Target PAC Date, the Client may terminate this Agreement upon written notice. Upon such termination:

- (a) The Contractor shall retain from payments received an amount equal to the value of works completed and materials delivered to Site, being the reasonable and documented cost incurred by the Contractor up to the date of termination;
- (b) Valuation shall be agreed between the Parties within fourteen (14) days. If not agreed, an independent quantity surveyor shall determine the value within thirty (30) additional days, applying a pro-rata assessment of completed works against the project programme;
- (c) All amounts received in excess of the determined value shall be refunded to the Client within thirty (30) days of the valuation determination;

(d) Deductions shall be limited to actual and documented costs of works completed and materials delivered, evidenced by delivery records and progress reports.

8.4.6 Exclusions

LDs not applicable for: (i) Force Majeure; (ii) Client-caused delays; (iii) grid authority delays; (iv) Client change orders; (v) customs delays with timely shipment proved; (vi) Client's late confirmation of technical agreements or drawings; (vii) Upstream Force Majeure declared by the OEM and notified to the Client per Section 8.4.7A.

8.4.7A Upstream Force Majeure (OEM Flow-Through). (a) Where the OEM has formally notified the Contractor in writing of an event it claims is Force Majeure under the upstream supply contract, the Contractor may notify the Client within seven (7) Business Days, attaching a copy of the OEM notice. (b) The Target PAC Date extends only if the notified event constitutes Force Majeure under Section 12.1 (no extension for events within the §12.1 exclusions, including ordinary commercial or production delays, raw material sourcing, port congestion, or financing). (c) If the Client reasonably contends the event is not §12.1 Force Majeure, it shall notify the Contractor within ten (10) Business Days of the Contractor's notice; the Target PAC Date shall not extend during any dispute. (d) If the Parties do not agree within thirty (30) days, either Party may refer the matter to dispute resolution under Section 15.3; no extension is deemed agreed unless resolved in favour of FM qualification. (e) Where the event is agreed or determined to be Force Majeure, the Target PAC Date extends day-for-day and no Delay LDs accrue for that period. (f) The Contractor shall use reasonable endeavours to challenge any OEM notice that clearly does not meet Section 12.1.

8.4.7 Extension of Time

Target PAC Date extends day-for-day. Contractor notifies within seven (7) Business Days.

8.4.8 Delivery Schedule hardening and FM preservation. Upon issue of the Delivery Schedule at Connection Terms, the milestones set out in that Schedule are binding on the Contractor. The Contractor shall provide monthly progress reports against each milestone. Where any milestone is at risk of delay, the Contractor shall notify the Client within seven (7) Business Days of that risk arising. Notwithstanding the foregoing, the extension-of-time regime in Section 8.4.7A (OEM Force Majeure flow-through), Section 8.4.6 (Exclusions), and Section 8.4.7 (Extension of Time) remain in full force and effect and are not affected by the binding nature of the Delivery Schedule. Ordinary production-capacity constraints, raw-material sourcing, port congestion, and financing issues shall not entitle the Contractor to an extension of time under this Agreement (consistent with Section 8.4.7A's exclusion of such events from Force Majeure). The Client accepts that the Delivery Schedule is established at Connection Terms and may differ materially from indicative lead times discussed before signing.

9. ACCEPTANCE

9.1 Provisional Acceptance (PAC)

9.1A PAC acceptance matrix. PAC shall be conditional on successful completion and documented sign-off of the following acceptance checks, each to be witnessed by the Client or its appointed representative: (a) usable AC energy capacity $\geq 98.50\%$ of rated (Section 9.1); (b) Round-Trip Efficiency $\geq 84\%$ at the AC system boundary (Section 9.1); (c) BMS/SCADA communications and EMS

command-execution verified; (d) all protection relays set, tested and verified by the Contractor's ETEK engineer; (e) DSO/SCADA telemetry and remote-trip verified operational; (f) fire-detection/suppression system tested and certified; (g) emergency-stop and safety systems tested; (h) HVAC/liquid-cooling operational; (i) grid-forming/VSG and black-start readiness verified (where DSO activation is required); and (j) full pass of the SAT protocol set out in Schedule A. The full FAT/SAT test protocol and pass/fail values shall be set out in Schedule A, agreed before order placement. Where measured capacity or RTE falls below the Contract guarantees but above the PAC hard floor, Section 9.1B applies.

9.1A-EXT Extended rejection window. The Client's right to inspect and to give notice of defect or non-conformity, and the associated repair/replace/refund remedy, extends until commissioning / PAC and is not limited to thirty (30) days after delivery. For non-conformity affecting ten percent (10%) or more of installed capacity discovered up to PAC, the Client may require repair or replacement, or reject the affected equipment and require refund of the corresponding price (recoverable, where unpaid, under the APG per Section 10.9(e)).

9.1B PAC with performance shortfall — remedy and cap. If measured capacity or Round-Trip Efficiency is below the Contract guarantees (Section 10.6) but above the PAC hard floor (Section 9.1(a)-(b)), PAC shall be issued but the Contractor shall, at the Client's election, (i) perform augmentation, repair or recommissioning to restore performance to the guaranteed level within sixty (60) days of PAC; or (ii) pay Liquidated Damages calculated as: $LD = (\text{Guaranteed level} - \text{Measured level}) \times \text{System Capacity} \times \text{prevailing market rate per kWh for equivalent battery modules}$. The aggregate Liquidated Damages for performance shortfall under this Section shall not exceed ten percent (10%) of the Component A Equipment Supply Price. This cap shall not apply to manufacturing defects, which are subject to the uncapped remedy in Section 13.5 and the OEM Direct Warranty Undertaking. Performance shortfall LDs under this Section and Delay LDs under Section 8.4 shall not be aggregated beyond the respective caps for each.

PAC shall be issued when the following criteria are met:

- (a) The BESS operates at not less than ninety-eight point five percent (98.50%) of original rated capacity (State of Health at COD); where measured SOH at PAC is between 95% (hard floor) and 98.50%, PAC is issued and Section 9.1B (shortfall remedy) applies;
- (b) Round-Trip Efficiency is not less than 84% under site conditions. For the avoidance of doubt, 84% is the hard floor for PAC; this threshold already incorporates a field tolerance adjustment from the OEM reference RTE of 86.32% and no further deduction applies;
- (c) BMS/SCADA communications verified and operational;
- (d) All safety and protection systems functional and tested;
- (e) All mandatory commissioning tests per Schedule A passed.

9.2 Defects Liability Period

Following PAC, the Defects Liability Period of three (3) months commences. During this period:

- (a) The Contractor shall remedy all defects notified by the Client promptly and at no cost;
- (b) Minor defects that do not materially affect system operation shall be recorded on a punch list and remedied within the Defects Liability Period;

(c) At the end of the Defects Liability Period, the Retention is released per Section 7.4.

A Final Acceptance Certificate (FAC) shall be issued at the end of the Defects Liability Period in accordance with Section 9.2A. Retention is released within thirty (30) days of FAC issuance per Section 7.4.

9.2A Final Acceptance Certificate (FAC). At the end of the Defects Liability Period (three (3) months after PAC), the Contractor shall issue a Final Acceptance Certificate once: (a) all defects notified during the Defects Liability Period have been rectified to the Client's reasonable satisfaction; (b) all punch-list items are closed or formally deferred by written agreement; and (c) the deliverables in Section 19.12 have been provided. The Retention shall be released within thirty (30) days of FAC issuance. If the Contractor fails to issue a FAC within thirty (30) days of the end of the Defects Liability Period despite the above conditions being met, the Client may issue the FAC itself and the Retention shall be released automatically.

9.2A-EXP FAC — independent expert sign-off. In addition to the matters in Section 9.2A, the Final Acceptance Certificate (FAC) shall require written acceptance by the Client or its appointed Independent Engineer confirming that all defects, punch-list items, outstanding commissioning obligations and performance test documentation have been completed to their reasonable satisfaction. Such acceptance shall not be unreasonably withheld or delayed beyond ten (10) Business Days. Retention is released only after FAC issuance.

10. WARRANTY

10.1 Unified Warranty

The Contractor warrants the entire BESS system — including all OEM equipment, installation workmanship, and EPC works — against defects in design, materials, and workmanship for the Warranty Period. The Contractor is the Client's sole warranty counterparty.

10.2 Coastal Installation

- (a) C5-rated enclosures as standard for Cyprus.
- (b) >500m from sea: full 5-year warranty.
- (c) <500m: PCS/transformer/switchgear warranty reduced to 2 years.
- (d) Client confirms coastal distance at signing (Schedule A).

10.3 Exclusions

Warranty excludes: (a) consumables; (b) misuse or negligence by the Client; (c) unauthorised modifications; (d) Force Majeure damage; (e) relocation without approval.

10.4 Conditions

Subject to: (a) operation per OEM guidelines; (b) qualified maintenance; (c) serial numbers intact; (d) access for inspection; (e) full payment.

10.5 WARRANTY-VOIDING BATTERY CONDITIONS

The following conditions void the battery warranty:

- (a) Cell voltage below 2.8V for 120 consecutive hours;

- (b) Cluster SOC at 0% for 120 consecutive hours;
- (c) Discharge cell voltage $\leq 2.5V$ (any occurrence);
- (d) SOC below 5% for more than 7 consecutive days.

The above conditions shall NOT void the warranty where the low SOC or low voltage condition was caused by:

- (i) a grid fault, outage, or curtailment instruction from DSO;
- (ii) an EMS malfunction not attributable to the Client, including a malfunction of DISPERON (the EMS provider, which remains responsible for EMS performance under this Agreement) or of any other Lighthief-group entity (see Section 10.5A);
- (iii) any Force Majeure event; or
- (iv) any failure by the Contractor to provide monitoring, alerting or a timely warning that would have enabled the Client to prevent the condition.

For as long as the operation and maintenance of the BESS is carried out under a confirmed LTSA with the Contractor, responsibility for a condition falling within (i)-(iv) above lies with the Contractor, not the Client, and the applicable remedies are provided under the LTSA (and, where the condition involves the EMS, the EMS Subscription Addendum), consistent with Section 10.5A and Section 11.5 (single integrated Project-Documents suite). This protection applies regardless of which LTSA Tier is selected under LTSA Schedule 2.

The Contractor shall alert the Client within twenty-four (24) hours of SOC dropping below ten percent (10%) for as long as the LTSA is in effect, regardless of Tier; the specific monitoring and alerting capability provided is as set out in the LTSA Tier selected under Schedule 2, but this 24-hour alert obligation itself is not conditional on Tier selection.

10.5A Warranty-void carve-out — EMS/monitoring failures. The warranty-voiding conditions set out in Section 10.5 shall not be invoked by the Contractor, and shall not restrict the Client's rights under the OEM Direct Warranty Undertaking or the LTSA availability guarantee, where the condition was caused by or attributable to: (a) DISPERON (Disperon Sp. z o.o.) in its capacity as EMS provider, which remains responsible for EMS performance under this Agreement; (b) any other entity within the Lighthief group of companies acting in connection with the Project; or (c) the Contractor's own monitoring failure or failure to issue a timely alert that would have enabled the Client to prevent the condition.

10.6 Performance Guarantees

The Contractor guarantees (backed by OEM warranty):

(a) State of Health (SOH) at 1 cycle per day: Year 5 $\geq 86.78\%$, Year 10 $\geq 79.58\%$, Year 15 $\geq 73.61\%$ (Year 10 and Year 15 each subject to the corresponding extended warranty under Section 10.6-EXT and the LTSA).

(b) Round-Trip Efficiency: $\geq 86.32\%$ at 0.5C, $25 \pm 2^\circ C$. PAC field floor per Section 9.1.

(c) Cycle Life: 8,000 cycles at 0.5C, 90% DoD, to 70% EOL.

(d) Remedy: Contractor procures replacement modules from OEM at Contractor's cost.

10.6-SOH SOH guarantee — full annual curve reference. The SOH guarantees in Section 10.6 correspond to the 0.25P, 1-cycle-per-day degradation profile of the Linyang Power Atlantic 5 MWh

BESS (BOL DC capacity 5,015 kWh), which matches this Project's actual ~4-hour system duration (Galascope 1: 5 MW/20.06 MWh; Galascope 2: 2.5 MW/10.03 MWh) — confirmed against Linyang's Power Atlantic 5MWh Degradation Curve document (Schedule A, SA-05). The full year-by-year guaranteed SOH curve is set out in Schedule 5 of the LTSA (LCY-LTSA-GAL-2026), which is incorporated by reference into this Agreement. The key contractual milestone values are: Year 0 (COD) 98.5%, Year 5 $\geq 86.78\%$, Year 10 $\geq 79.58\%$, Year 15 $\geq 73.61\%$ (0.25P, 1 cycle/day, per Linyang Power Atlantic degradation curve document). Year 10 and Year 15 guarantees apply only where the OEM extended warranty for the relevant period has been purchased.

10.6-EXT Extended BESS warranty — optional, priced (BESS only; PCS/MVS excluded). The base warranty under Section 10 runs for five (5) years from PAC. The Client may, at its sole option and by written election to the Contractor at any time before expiry of the then-current warranty period, extend the OEM (Linyang) BESS Performance and Product Warranty for one or both of the following periods, at the following rates (official Linyang Cyprus pricing for the Project, EUR/MWh/Year, excluding VAT): (a) Years 6–10: EUR 913.92/MWh/Year (EUR 27,417.60/Year for the combined 30 MWh System Capacity, i.e. Galascope 1: 20 MWh + Galascope 2: 10 MWh); (b) Years 11–15: EUR 1,157.62/MWh/Year (EUR 34,728.60/Year for the combined 30 MWh System Capacity). This extension covers the BESS (cells, modules, racks and BMS) only. The Client has confirmed it does not require, and this Agreement does not offer, an extended warranty on the PCS or MV Skid (MVS) beyond the base warranty period; the Contractor's quoted PCS/MVS extended-warranty rate (EUR 747.76/MWh/Year for Years 6–10 and EUR 926.10/MWh/Year for Years 11–15) is disclosed for completeness but is not part of the Contract Price or any priced option under this Agreement unless separately elected in writing. Neither extension is included in the Contract Price unless and until the Client elects it in writing; if elected, the applicable fee is invoiced and payable in addition to the Base Service Fee under the LTSA (Schedule 2), which is the vehicle through which the extended warranty is administered and delivered, consistent with Section 11.1. For the avoidance of doubt, the SOH guarantees for Year 10 and Year 15 under Section 10.6-SOH are conditional on the corresponding extension in this Section having been elected and paid for.

10.6A Witnessed performance testing and independent determination. Annual performance testing shall be performed under an agreed protocol and may be witnessed by the Client or its Independent Engineer. Disputes over SOH, usable AC capacity or RTE shall be determined by an independent expert or an ISO/IEC 17025-accredited laboratory under an agreed protocol where the Parties do not agree; the OEM's view is evidence but not determinative.

10.7 Availability Guarantee

97% availability and associated LDs apply only under a separately executed LTSA (Tier C+).

10.8 OEM Direct Warranty Undertaking

10.8A OEM Direct Warranty Undertaking — required features (procurement covenant). The Contractor shall procure that the OEM Direct Warranty Undertaking is irrevocable, directly enforceable by the Client and its lender/security agent, survives termination of any OEM/Distributor arrangement, includes a waiver of defences arising from disputes with the Contractor or Distributor, and does not permit unilateral amendment of the OEM Warranty Manual for this Project. This is an

obligation to procure the DWU in that form; it does not warrant terms the OEM declines to give, in which case the Parties shall address the shortfall under Section 1A.5.

The OEM has provided a Direct Warranty Undertaking (Schedule C) confirming its standard 5-year product warranty is enforceable directly by the Client if the Contractor cannot fulfil obligations for any reason, including insolvency.

10.9 Advance Payment Guarantee (APG) and Performance Bond

10.9(a) APG issuance & validity — confirmed mechanism. The OEM's bank (Bank of Communications) issues the Advance Payment Guarantee(s) upon being provided with both this EPC Agreement and the OEM Sales Contract, and issues them with Galascope Ltd named as beneficiary from the outset. The Client may therefore demand directly under the APG(s) notwithstanding that the Client pays the Contractor (and not the OEM): the APG is original issuance naming the Client as beneficiary, not a transfer or assignment. This confirms the validity of the APG for the Client and underpins the payment terms in Section 7.1.

10.9(b) Advance Payment Guarantee No. 1 — advance tranche. The Contractor shall procure that the equipment manufacturer's bank (Bank of Communications) issues a first-demand Advance Payment Guarantee under URDG 758 naming Galascope Ltd (HE 303759) and/or its project-finance security agent as beneficiary, securing the advance payment for the supply of the equipment. The Guaranteed Amount is EUR 705,792 (the equipment-side advance), as set out in Schedule A and stated on the face of the APG. This and Section 10.9(c) replace the APG figures in the body and in Schedule A Parts 2 and 4.

10.9(c) Advance Payment Guarantee No. 2 — pre-shipment tranche. Before the pre-shipment payment falls due, and conditional on a passed Factory Acceptance Test, the Contractor shall procure that the manufacturer's bank issues a second first-demand Advance Payment Guarantee (or, at the Contractor's election, an increase to APG No. 1) under URDG 758 naming the Client and/or its security agent as beneficiary, securing the pre-shipment payment for the supply of the equipment. The Guaranteed Amount is EUR 1,411,585 (the equipment-side pre-shipment tranche), as set out in Schedule A. Combined APG cover is therefore EUR 2,117,377 (the equipment payments made before delivery). The DAP and acceptance tranches, paid on or after delivery, are not prepayments and are not APG-secured (covered by possession of the equipment, the performance guarantee, and the Retention).

10.9(d) APG validity — to PAC. Each APG shall remain valid until the earlier of: (i) issuance of the Provisional Acceptance Certificate (PAC); or (ii) twelve (12) months after delivery of the equipment to Site; upon issuance of PAC the APGs are released. This keeps the advance-refund cover alive through commissioning, when latent equipment faults are typically discovered.

10.9(e) APG trigger. A demand may be made under either APG where the manufacturer has failed to refund the relevant prepayment when due, or has failed to deliver conforming/functioning equipment, including on the Client's rejection of equipment at commissioning (see Section 9 rejection window and the manufacturing-defect carve-out below).

10.9A Security layering alongside the APGs. Through to PAC the Client is protected by, in combination: (a) the two APGs (advance + pre-shipment refund, to PAC / 12 months, EUR 2,117,377

combined); (b) CAR / erection all-risks insurance for the full replacement value from arrival at the discharge port through installation to PAC — the sea voyage is covered by the OEM's CIF marine insurance, so the Contractor's policy runs from port of discharge; (c) the OEM 5% performance guarantee to the end of the Defects Liability Period; (d) the Retention (Section 7.4); and (e) the OEM Direct Warranty Undertaking and 5-year product warranty (Section 10.8).

10.9B APG issuing-bank acceptability (procurement covenant). The Contractor shall procure that each APG is issued by a bank acceptable to the Client and its lender and, where the issuing bank is outside the EU, is confirmed by or payable through an acceptable EU bank; permits partial and multiple drawings; remains independent of EPC disputes; and is extended automatically if PAC or Site delivery is delayed beyond the then-current expiry. This is an obligation to use all reasonable endeavours to procure these features.

10.9-APG Consistency with agreed APG wording. The Advance Payment Guarantees issued by the OEM's bank shall be consistent in all material respects with the agreed APG form (as set out in the bank-change instruction issued by the Contractor to the OEM's bank). Any material discrepancy between the issued instruments and the agreed APG wording shall be notified to the Client within five (5) Business Days of the Contractor becoming aware, and the Contractor shall use all reasonable endeavours to procure correction before the relevant payment milestone falls due.

10.10 Grid-forming (VSG) & Black Start. The PCS supplied (Kehua C-series) is capable of grid-forming (VSG) and black-start operation via firmware. Activation, FAT or SAT verification, firmware enablement, licences and commissioning support for grid-forming and black-start capability are included in the Contract Price, unless a future DSO or grid-code requirement first published after the Order Date materially exceeds the requirements known as at signing. Hardware is unaffected.

11. RELATIONSHIP WITH THE LTSA AND COMPANION DOCUMENTS

11.1 The operational availability guarantee (97%), availability liquidated damages, and the extended warranty (Years 6–15) are provided under the LTSA (LCY-LTSA-GAL-2026), which is executed before the advance payment falls due (§1A.5A). The Client shall at all times have the benefit of these protections; the remedies and liability limits applicable to them are those set out in the LTSA.

11.1-PERF Park performance responsibility while the LTSA is in force. For as long as the operation and maintenance of the BESS is being carried out by the Contractor under a confirmed and executed LTSA (LCY-LTSA-GAL-2026), the Contractor acknowledges responsibility for park performance (including availability and SOH performance) and the Client's primary remedies in respect of such performance are those set out in the LTSA and its schedules. This acknowledgement is without prejudice to the Contractor's obligations and the Client's rights under this Agreement (including Sections 9.1, 9.1B, 10.6 and 13), and the aggregate liability caps in Section 13.2 remain in full force.

11.2 This Agreement and the LTSA are intended to operate together as a single commercial arrangement for the Project.

11.3 SOH, RTE, and cycle life guarantees (Section 10.6) are in this Agreement, independent of the LTSA.

11.4 This Agreement may be executed on its own. The LTSA (LCY-LTSA-GAL-2026) and the OEM Direct Warranty Undertaking (LCY-OEM-DWU-001 v1.0) are companion documents which must be executed and delivered, in each case, before the advance payment under Section 7.1(a) falls due (§§1A.5 and 1A.5A);

the Parties' firm intention is to sign them on the same date (the Order Date) as this Agreement; if that is not achieved for genuine practical reasons, they must in any event be executed no later than the Documents Long-Stop Date under Section 1A.8(b), and before the advance payment falls due.

11.5 Integrated document suite and interpretation. The EPC Agreement, the LTSA, the OEM Direct Warranty Undertaking, the Advance Payment Guarantees, the OEM Performance Guarantee, the EMS Subscription Addendum, the Technical Agreements and the OEM Warranty Terms shall be read together as a single, integrated project-document suite. In the event of any inconsistency or conflict between them, the following order of precedence shall apply (with the higher-ranked document prevailing to the extent of any inconsistency): (1) the EPC Agreement; (2) the LTSA; (3) the Advance Payment Guarantees and the OEM Performance Guarantee; (4) the OEM Direct Warranty Undertaking and the OEM Warranty Terms; (5) the EMS Subscription Addendum; (6) the Technical Agreements.

12. FORCE MAJEURE

12.1 Definition

Force Majeure means events genuinely beyond a Party's reasonable control: war, terrorism, riots, natural disasters, pandemics, epidemics, governmental sanctions, embargoes, and acts of government.

Force Majeure does NOT include: regulatory changes, grid connection delays, port congestion, transportation disruptions, financing difficulties, or ordinary commercial risks. Grid authority delays are addressed under Section 8.4.6.

12.2 Effect

Obligations suspended without penalties for duration of event.

12.3 Notification

Prompt notice with event details, expected duration, and mitigation steps.

12.4 Mitigation

Commercially reasonable efforts to resume performance.

12.5 Extended Force Majeure

12.6 Force Majeure — limitations. Force Majeure shall not excuse: payment of amounts already due; warranty obligations for defects existing before the event; APG-extension obligations; insurance-maintenance obligations; reasonable mitigation; or delivery of documents and data capable of being delivered electronically.

If a Force Majeure event persists for more than six (6) months, either Party may terminate upon thirty (30) days' written notice. In such event:

- (a) The Client shall pay the value of works completed and materials delivered as at the date of termination;
- (b) If payments received by the Contractor exceed the value of works completed and materials delivered, the Contractor shall refund the excess to the Client within thirty (30) days of termination;

(c) Valuation shall follow the same process as Section 8.4.5(b).

13. LIMITATION OF LIABILITY

13.1 Neither Party shall be liable for indirect or consequential damages, including loss of profits, loss of revenue, or loss of business.

13.2 Limitation of Liability. The Contractor's aggregate liability shall be: (a) for claims relating to the Contractor's own EPC services, installation and non-OEM works (excluding OEM equipment): ten percent (10%) of the Contract Price; (b) for all other contractual breaches (excluding (a), (c), fraud and wilful misconduct): fifty percent (50%) of the Contract Price; (c) for manufacturing defects in OEM equipment and for fraud or wilful misconduct: uncapped, with the Contractor's right to pursue OEM recovery per Section 13.4.

13.3 Carve-Outs (not subject to any cap):

- (a) Fraud or wilful misconduct;
- (b) Death or personal injury caused by negligence;
- (c) Client's payment obligations;
- (d) Manufacturing defects in OEM equipment — Contractor pursues OEM recovery; OEM indemnification flows through to Client per §13A.1(e).

13.3A Additional liability carve-outs (not subject to any cap). In addition to the carve-outs in Section 13.3, the liability caps in Section 13.2 shall not apply to: (a) latent defects in the Works or Equipment, provided that any claim in respect of a latent defect is brought within two (2) years of the date of PAC, after which the applicable cap under Section 13.2 shall apply; and (b) non-conformity with mandatory safety requirements or applicable grid-code requirements existing as of the date of PAC and attributable to the Contractor, excluding any non-conformity arising from a change in applicable law or regulation after the date of PAC, or from any act or omission of the Client. For the avoidance of doubt, general firmware, software and design defects that are the responsibility of the OEM remain subject to the OEM Direct Warranty Undertaking and the manufacturing-defect carve-out (Section 13.5), and are not additionally uncapped under this Section.

For the purposes of paragraph (a), a "latent defect" means a defect in the Works or Equipment that could not have been discovered through the exercise of reasonable due diligence by way of standard acceptance testing, visual inspection or commissioning procedures conducted as of the date of PAC or during the Defects Liability Period.

13.4 The tiered structure in Section 13.2 mirrors the upstream liability framework agreed with the OEM. For manufacturing defects specifically, the OEM bears full replacement cost including shipping under its supply agreement with the Contractor, with no cap applied.

13.5 Manufacturing-defect carve-out. For confirmed manufacturing defects in OEM equipment, the OEM bears the full cost of repair or replacement, including shipping to CIF Limassol, and the OEM's standard 10% warranty-liability cap does not apply. The Contractor shall procure this carve-out from the OEM and reflect it in the OEM Direct Warranty Undertaking provided to the Client.

For the avoidance of doubt, "manufacturing defects" for the purposes of this Section 13.5 expressly include systemic, latent, design, firmware, batch, safety-recall and serial defects across the PCS,

BMS, HVAC, fire-suppression, transformer, MV switchgear, battery cells and ancillary equipment supplied by the OEM.

13A. INDEMNIFICATION

13A.1 Contractor Indemnity to Client

The Contractor indemnifies the Client against:

- (a) Defects in the BESS (including OEM equipment) during Warranty Period;
- (b) Contractor's negligence during installation and commissioning;
- (c) Breach of Contractor's warranties;
- (d) Personal injury or property damage caused by Contractor or OEM personnel on-site;
- (e) Manufacturing defects in OEM equipment (recoverable from OEM under supply agreement).

13A.2 Client Indemnity to Contractor

The Client indemnifies the Contractor against claims arising from:

- (a) Client's material breach of this Agreement;
- (b) Client's negligence or wilful acts;
- (c) Operation contrary to OEM guidelines;
- (d) Unauthorised modifications;
- (e) Failure to maintain insurance.

The Client's indemnity obligations under this Section apply only to the extent that the relevant loss was caused or contributed to by the Client's act or omission. Where fault is shared, the Client's indemnity shall be reduced proportionally to reflect the Client's degree of responsibility.

14. INSURANCE

14.1 Contractor Insurance

- (a) Public Liability: EUR 5,000,000 per occurrence;
- (b) Professional Indemnity: EUR 2,000,000 per occurrence;
- (c) CAR Insurance: full Contract Price, LEG3 defects clause;
- (d) Employers' Liability: statutory minimum.

14.2 OEM Insurance

OEM maintains Product Liability EUR 5,000,000/occurrence (AXA Tianping) and PI EUR 2,000,000/occurrence for Cyprus.

14.3 Client Insurance

- (a) Site/property insurance from delivery;
- (b) Operational liability from commissioning;
- (c) Business interruption (recommended).

14.4 Proof of Insurance

The Contractor shall provide insurance certificates or cover notes (public liability, professional indemnity, and CAR/erection all-risks as required by Section 14.1) to the Client before the advance payment under Section 7.1(a) falls due. Public Liability and Employers' Liability insurance, being standing corporate policies of the Contractor, shall be in place from the Order Date. The Contractor's Professional Indemnity insurance shall be bound and in force no later than the date the order is placed under Section 1A.4 (the same trigger as the advance payment under Section 7.1(a)), consistent with the CAR policy's own attachment point under Section 14.5(a); the Contractor shall undertake no design, engineering or site works giving rise to professional-negligence exposure before that date.

For the avoidance of doubt, marine cargo insurance for the sea voyage from the port of shipment to CIF Limassol (Section 14.5(a)) is procured and provided by the OEM (Linyang) under the CIF terms of the OEM's supply contract, and not by the Contractor. The Contractor shall forward the OEM's certificate of marine cargo insurance to the Client without delay upon its receipt from the OEM.

14.5 Insurance — coverage structure and Contractor's procurement covenant. (a) Coverage structure. The sea voyage from the port of shipment to CIF Limassol is intended to be covered by the OEM's (Linyang's) CIF marine cargo insurance, and the Contractor's Construction All-Risks (CAR) policy is intended to attach from arrival at the port of discharge (CIF Limassol) and to run through inland transit and installation to PAC. (b) Procurement covenant. The Contractor shall use all reasonable endeavours to procure, and to maintain in force for the relevant periods, insurances that: (i) name Lighthief Cyprus Ltd as insured; (ii) name the Client (Galascope Ltd) and, where notified, its project-finance lender or security agent as additional insured on the CAR and Public Liability policies, with a waiver of subrogation in their favour and, in respect of the lender, a loss-payee / lenders' endorsement; (iii) provide inland-transit cover attaching from the port of discharge through to delivery at Site; and (iv) so far as reasonably obtainable from insurers, bridge the interface between the OEM's marine cargo cover and the CAR cover (including by way of a difference-in-conditions or 50/50 loss-sharing basis). (c) Evidence. The Contractor shall provide certificates of insurance and the relevant endorsements evidencing the above before work commences at Site (and, in respect of any advance payment, per Section 14.4), and shall notify the Client promptly of any material change to or cancellation of any policy. (d) Where any endorsement in (b) is not obtainable from insurers on commercially reasonable terms, the Contractor shall notify the Client and the Parties shall agree an alternative arrangement in good faith; nothing in this Section warrants cover that insurers decline to provide. (e) Commissioning failure due to Contractor negligence. For the avoidance of doubt, any failure to achieve commissioning, or any defect, that is attributable to the Contractor's professional negligence (including electrical-engineering or design negligence) is covered under the Contractor's Professional Indemnity insurance, which the Contractor shall procure and maintain in force no later than the Order Date defined in Section 1A.4 and throughout the Works thereafter, with a limit of not less than EUR 2,000,000, per Section 14.4; this is in addition to, and does not limit, the Contractor's rectification, delay-LD, performance-LD, retention and performance-guarantee obligations under this Agreement.

15. GOVERNING LAW AND JURISDICTION

15.1 Laws of the Republic of Cyprus.

15.2 Courts of Cyprus have exclusive jurisdiction.

15.3 ADR: 30-day negotiation before proceedings.

15.4 English is the official language.

16. MISCELLANEOUS

16.1 Entire Agreement.

16.2 Amendments: in writing, signed by authorised representatives.

16.3 Assignment

(a) No assignment without consent, except:

(i) to an Affiliate (corporate reorganisation); or

(ii) by the Client to a project finance lender for security purposes — no Contractor consent required.

(b) Upon lender enforcement, Contractor recognises the lender as Client if payment obligations are assumed.

16.3A Lender step-in and direct agreement. The Client's project-finance lender or security agent shall be entitled to step-in rights, cure rights, notice rights and the right to enforce or receive proceeds from the APGs, the OEM performance guarantee, warranties, insurance and performance undertakings. The Contractor shall, acting reasonably, enter into a direct agreement with the lender/security agent on customary terms that do not materially increase the Contractor's obligations or exposure.

16.3B Lighthief International Ltd — performance undertaking. Lighthief International Ltd ("Guarantor") guarantees to the Client the due performance by Lighthief Cyprus Ltd of its core EPC obligations under this Agreement, being: (a) delivery of the BESS equipment to Site as EPC Contractor; (b) installation, commissioning and handover of the BESS to the technical specification in Schedule A; and (c) the Contractor's warranty obligations under Section 10.1 for the Warranty Period. This undertaking: (i) does not extend to financial liabilities beyond the Contract Price, to the LTSA or EMS services (which are contracted separately), or to OEM obligations guaranteed under the DWU and performance guarantee; (ii) is governed by Cyprus law; (iii) remains in force for the duration of the Warranty Period; (iv) is limited to the same caps, exclusions, carve-outs and defences available to the Contractor under Sections 13.1, 13.2, 13.3 and 13.3A, as if the Guarantor were itself the Contractor; and (v) arises solely if the Contractor becomes insolvent, is placed into liquidation, administration, receivership or any analogous insolvency proceeding under the laws of the Republic of Cyprus, or otherwise formally ceases to trade or admits in writing its inability to perform, and is not triggered by mere non-performance, delay, or dispute while the Contractor remains solvent and operating. This undertaking is provided by way of a parent-company confirmation letter from Lighthief International Ltd substantially in the form of Schedule D, signed by its authorised officer (Dr. Arkadius Sybaris, Founder & CEO), delivered to the Client before the advance payment under Section 7.1(a) becomes due.

16.4 Counterparts and electronic signature.

16.5 Severability.

16.6 Notices: in writing to specified addresses.

17. COMPLIANCE AND ANTI-BRIBERY

[Sections 17.1–17.6 as per v4.0 — anti-corruption, AML, environmental, H&S, Cyprus energy regulations, EU directives.]

18. DATA PROTECTION

18A Cyber security, data and software (framework). The Contractor shall implement and maintain cyber-security controls for the BESS control systems consistent with recognised industrial-control-system good practice (IEC 62443 principles), including secure remote access, multi-factor authentication, role-based access control, audit logs, firmware-integrity controls, vulnerability management and incident reporting to the Client within twenty-four (24) hours of becoming aware of a material incident. The Client owns the operational data and is entitled to full raw-data export in open formats. The specific control set and any formal IEC 62443 / NIS2 certification shall be confirmed with the ICS/EMS provider (DISPERON) and recorded in the Technical Agreement before PAC.

[Sections 18.1–18.4 as per v4.0 — GDPR, data processing, security, breach notification.]

19. REGULATORY COMPLIANCE

[Sections 19.1–19.11 as per v4.0 — Cyprus laws, building permit, site requirements, fire safety, environmental, certifications, grid connection, SCADA, electrical studies, DSO commissioning.]

19.11 Responsibilities:

(a) Client: Planning permits, landowner consents, environmental permits.

(b) Contractor: All technical and regulatory responsibilities including EAC, DSO, ETEK, engineering, grid connection, and OEM coordination.

19.12 Technical deliverables at handover. No later than thirty (30) days after PAC, the Contractor shall deliver to the Client: (a) as-built drawings and single-line diagrams (SLD); (b) all test reports, commissioning certificates and inspection certificates issued at FAT, SAT and PAC; (c) SCADA/EMS IEC 60870-5-104 and Modbus register maps / point lists; (d) protection-relay settings files and test certificates; (e) firmware version records and access credentials for each device; (f) fire-system inspection and pressure test certificates; (g) C5 corrosion-coating certificates; (h) serial-number records for all containers, PCS units, transformers and MV switchgear; (i) DSO/EAC submission files and approval records; and (j) OEM operation and maintenance manuals. Documents shall be provided in editable electronic format where reasonably available. These deliverables are a condition of final retention release under Section 7.4.

19.13 Licensing. The Contractor shall ensure BESS installation works are performed in a manner suitable for compliance with applicable licensing and permitting rules published by the Republic of Cyprus for energy storage installations, to the extent such compliance is within the Contractor's scope of supply. Installer sign-off by the Contractor's ETEK engineer is included; licensed electrical design and as-built drawing packages for the wider site are excluded (Client's engineer).

SCHEDULE A — TECHNICAL SPECIFICATIONS, COMMERCIAL DETAILS AND PRICE BASIS

Reference: LCY-EPC-GAL-B1-2026 | Version: 6.5 | Date: August 2026

PART 1 — PARK DETAILS

Park Name: Galascope 1
Site / District: Famagusta District, Cyprus
BESS Capacity: 20 MWh / 5.0 MW
Containers (BESS): 4 x Linyang Power Atlantic 5.015 MWh (20HC)
MV Skid: 1 x T4 MV Skid (4 x BCS1250K = 5 MW, SL-5000)
PCS: 4 x Kehua BCS1250K-C-HUD = 5.0 MW
Coastal Distance: >5 km (C5 enclosure — full 5-year warranty)

Indicative Component A (Equipment CIF): EUR 1,848,712.43
Indicative Component B (EPC Services): EUR 407,836.97
INDICATIVE CONTRACT PRICE (A+B, ex VAT): EUR 2,256,549.40

APG (combined batch, per this Agreement): No. 1 advance EUR 705,792 + No. 2 pre-shipment EUR 1,411,585 (combined batch)
Performance Guarantee (5% × Component A): EUR 92,435.62

Park Name: Galascope 2
Site / District: Famagusta District, Cyprus
BESS Capacity: 10 MWh / 2.5 MW
Containers (BESS): 2 x Linyang Power Atlantic 5.015 MWh (20HC)
MV Skid: 1 x T2 MV Skid (2 x BCS1250K = 2.5 MW, SL-2500)
PCS: 2 x Kehua BCS1250K-C-HUD = 2.5 MW
Coastal Distance: >5 km (C5 enclosure — full 5-year warranty)

Indicative Component A (Equipment CIF): EUR 974,457.00
Indicative Component B (EPC Services): EUR 231,843.00
INDICATIVE CONTRACT PRICE (A+B, ex VAT): EUR 1,206,300.00

APG (combined batch, per this Agreement): see combined batch APG figure above
Performance Guarantee (5% × Component A): EUR 48,722.85

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PART 2 — COMBINED CONTRACT SUMMARY

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TOTAL INDICATIVE CONTRACT PRICE (ex VAT): EUR 3,462,849.40

PAYMENT MILESTONES (applied to Confirmed Contract Price):

COMPONENT A (EUR 2,823,169.43) — A1 Advance 25%: EUR 705,792 | A2 Pre-ship 50%: EUR 1,411,585
| A3 Delivery 15%: EUR 423,475 | A4 PAC 10%: EUR 282,317

COMPONENT B (EUR 639,680) — M1a Mob+Eng 20%: EUR 127,936 | M1b Civil 20%: EUR 127,936 | M2-
15%: EUR 95,952 | M3-15%: EUR 95,952 | M4-15%: EUR 95,952 | M5 PAC 10%: EUR 63,968 | Retention
5%: EUR 31,984

First combined payment at trigger (A1 + M1a): EUR 833,728.35

TOTAL CONTRACT PRICE (ex VAT): EUR 3,462,849.40 — see §7.1 for full schedule

TOTAL: EUR 3,462,849.40

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PART 3 — KEY DATES

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Production Start: per the Delivery Schedule confirmed at Connection Terms
Factory Acceptance: per the Delivery Schedule confirmed at Connection Terms
CIF Limassol: per the Delivery Schedule confirmed at Connection Terms
Target PAC Date: the date in the Delivery Schedule confirmed at Connection Terms
Warranty Start: On PAC
Base Warranty End: 5 years from PAC
DLP End: 3 months post-PAC
Retention Release: On DLP expiry

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PART 4 — PRICE BASIS REFERENCE (per Section 6.1)

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Quotation Source: the January 2026 quotation basis (locked per the signed LOI Clause 4.4)
Lithium Carbonate Index: as recorded in the Indicative Price Basis Certificate at EPC signing (per LOI Clause 4.4)
EUR/CNY Reference: as recorded in the Indicative Price Basis Certificate at EPC signing (per LOI Clause 4.4)
Reference Date: January 2026 quotation basis (price held per LOI Clause 4.4; adjustment measured from the indices in the Indicative Price Basis Certificate at EPC signing)

Adjustment Triggers (per §6.1(c)):

- Lithium carbonate index movement > 10% from reference value, OR
- EUR/CNY rate movement > 8% from reference value, OR
- Configuration change requested by Client

Adjustment Cap: 5% of Indicative Contract Price (§6.1(d))

Walk-away Right: Either Party may terminate without penalty if adjustment > 5%

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PART 5 — BESS TECHNICAL SPECIFICATION

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BESS: Linyang Power Atlantic 5.015 MWh LFP (EVE LF314, 12P416S)
Thermal: liquid cooling 45 kW; IP54; C5 enclosure (Cyprus standard)
Fire: FK5112 perfluoroketone + water; BMS: Modbus TCP / IEC 60870-5-104

PCS: Kehua BCS1250K-C-HUD (1.25 MW); ≥98% efficiency; EN 50549-2 (TÜV D 115067 0077)

Incoterms (Contractor → Client): DDP to Client's Site, Cyprus (Incoterms® 2020), per Section 8.1.

Incoterms (OEM → Contractor, separate supply contract): CIF Limassol; Port of Shipment: Shanghai.

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PART 6 — COMPANION DOCUMENTS (executed as conditions precedent to the advance payment)

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1. LTSA (Ref: LCY-LTSA-GAL-2026) — executed before the advance payment falls due
2. OEM Direct Warranty Undertaking — Schedule C (LCY-OEM-DWU-001, one per park)
Linyang contacts: Conor Yang / Kamil Tyburski / Tomasz Wieckowski
3. EMS Subscription Addendum — DISPERON (EUR 400/MWh/yr from PAC; while the LTSA is in force this is included within the LTSA all-in Service Fee of EUR 1,740/MWh/yr and not invoiced separately; the standalone rate applies only if the Client exits the LTSA)
4. APG from Linyang (CP: received before advance payment)
5. Performance Bond from Linyang (5% Component A, valid to DLP end)
6. Confirmed Price Certificate (issued within 14 days of Connection Terms receipt)

APPENDIX — DELAY LD WORKED EXAMPLES

Example 1 — Full Park Delay:

Park Contract Price: EUR 2,000,000. PCS delayed 45 days.

Days 1–30: $30 \times 0.1\% \times \text{EUR } 2,000,000 = \text{EUR } 60,000$

Days 31–45: $15 \times 0.15\% \times \text{EUR } 2,000,000 = \text{EUR } 45,000$

Total: EUR 105,000 (5.25% of Contract Price)

Example 2 — Partial Delay:

4-container Park (20 MWh, EUR 2,000,000). 1 container (25%) delayed 20 days.

LD Value: $\text{EUR } 2,000,000 \times 25\% = \text{EUR } 500,000$

LDs: $20 \times 0.1\% \times \text{EUR } 500,000 = \text{EUR } 10,000$

Remaining 3 containers proceed to PAC without LD liability.

Example 3 — Escalation:

If delayed container prevents PCS minimum load, escalates to Full Park from that date.

SCHEDULE C — OEM DIRECT WARRANTY UNDERTAKING

[Annexed: OEM-Direct-Warranty-Undertaking-Linyang.docx — to be executed by Linyang, Lighthief Cyprus Ltd, and Client before the advance payment under Section 7.1(a) falls due (§1A.5(a)).]

The OEM Direct Warranty Undertaking confirms:

- (a) Linyang's 5-year product warranty applies to all equipment supplied for this Project through the Distributor;
- (b) The Client may enforce the warranty directly against Linyang if the Contractor cannot perform;
- (c) The undertaking survives termination of any agreement between Linyang and Lighthief;
- (d) Governing law: Singapore (SIAC arbitration, Cyprus carve-out for interim relief).

SCHEDULE D — LIGHTHIEF INTERNATIONAL PERFORMANCE UNDERTAKING LETTER

[Draft — to be issued on Lighthief International Ltd letterhead and delivered to the Client before the advance payment under Section 7.1(a) becomes due, per Section 16.3B.]

LIGHTHIEF INTERNATIONAL LTD

Date: [●] 2026

To: Galascope Ltd

[Client address]

Re: Parent Company Performance Undertaking — EPC Agreement Ref. LCY-EPC-GAL-B1-2026

Dear Sirs,

We refer to the Engineering, Procurement & Construction Agreement dated [●] 2026 between Lighthief Cyprus Ltd ("Contractor") and Galascope Ltd ("Client"), Reference LCY-EPC-GAL-B1-2026 (the "EPC Agreement").

1. Lighthief International Ltd ("Guarantor") confirms and guarantees to the Client the due performance by the Contractor of the following core obligations under the EPC Agreement (the "Guaranteed Obligations"):

- (a)** delivery of the BESS equipment to Site as EPC Contractor;
- (b)** installation, commissioning and handover of the BESS to the technical specification set out in Schedule A;
- (c)** the Contractor's warranty obligations under Section 10.1 of the EPC Agreement for the Warranty Period.

2. Exclusions. This undertaking does not extend to: (i) financial liabilities beyond the Contract Price; (ii) the Long-Term Service Agreement or EMS services, which are contracted separately; or (iii) OEM obligations guaranteed under the OEM Direct Warranty Undertaking or OEM Performance Guarantee.

3. Limitation of liability. The Guarantor's liability under this undertaking shall in no circumstances exceed, and shall be subject to, the same limitations of liability, caps, exclusions, carve-outs and defences available to the Contractor under Sections 13.1, 13.2, 13.3 and 13.3A of the EPC Agreement, as if the Guarantor were itself the Contractor.

4. Trigger of Guarantor's liability. The Guarantor's obligations under this undertaking arise solely in the event that the Contractor becomes insolvent, is placed into liquidation, administration, receivership or any analogous insolvency proceeding under the laws of the Republic of Cyprus, or otherwise formally ceases to trade or admits in writing its inability to perform the Guaranteed Obligations. For the avoidance of doubt, this undertaking shall not be triggered by mere non-performance, delay, or dispute concerning the Contractor's obligations under the EPC Agreement while the Contractor remains solvent and operating.

5. Governing law and jurisdiction. This undertaking is governed by the laws of the Republic of Cyprus, and the courts of Cyprus shall have exclusive jurisdiction.

6. Duration. This undertaking takes effect on the date of this letter and shall automatically terminate, without further notice or action, upon expiry of the Warranty Period defined in the EPC Agreement.

7. No assignment. The benefit of this undertaking may not be assigned by the Client without the Guarantor's prior written consent, save for assignment to the Client's project-finance lender or security agent in accordance with Section 16.3A of the EPC Agreement.

Yours faithfully,

Dr. Arkadius Sybaris

Founder & CEO

Lighthief International Ltd

SIGNATURES

For and on behalf of Lighthief Cyprus Ltd ("Contractor"):

Name: _____

Title: _____

Signature: _____

Date: _____

For and on behalf of Galascope Ltd ("Client"):

Name: Ntinos Konstantinos

Title: Director

Signature: _____

Date: _____